

Different Stages of Criminal Trial

The criminal trial stage varies from country to country and every country follows its own rule. In Bangladesh, there is criminal trial stage that helps to ensure proper justice. Now I am going to discuss the criminal trial stage of Bangladesh in two heads: trial in the Magistrate Court and trial in the Sessions Court. These two types of court are different from each other because of nature and procedure of trial.

Trial in the Magistrate court

There are two forms of trial in the Magistrate court: summary trial and regular trial. The Magistrate follows summary trial when the case file based on sections 260 and 261. In summary trial there is no mandatory rule to record all evidences. Besides, many adjournments are not allowed in summary trial. Because of some rules there is a limit of imprisonment in summary trial and this is that the Magistrate cannot give a sentence above two years. Though in summary trial the Magistrate has to follow all the steps of regular trial, there are some differences between summary trial and regular trial because in summary trial of offences the Magistrate need not have to record the evidence of the witnesses where on appeal lies on the other hand the Magistrate has to record all the evidence where appeal lies.

Steps of a Regular Trial in Magistrate Court

There are following stages of regular trial in Magistrate court that are given below:

- a) **Pre-trial Hearing or Discharge before Framing of Charge:** The accused has to present in front of the Magistrate on the fixed date when the trial begin and if he has been detained in custody, he will be brought from the custody. If he is on the bail, he must appear in the court. But if the accused does not attend in the court on the fixed date when he is in bail, in this case the court of trial may issue warrant, called a 'bench warrant' for the arrest of the accused. Whatever the way, if the accused appears before the Magistrate, the Magistrate first considers the records of the case and then hears the both parties. After hearing and considering everything if the Magistrate think that the charge is groundless, he may discharge the accused according to section

241A. Moreover, defense lawyer may raise the point of 'no case to answer' that means the prosecution is unable to raise a prima facie case in favor of their allegation against the accused. In based on 'no case to answer' the Magistrate discharge the accused before framing of charges.

- b) **Framing of charges:** After hearing and considering all the things if the Magistrate thinks that the evidences are considerable and support the allegation against the accused, in this case the Magistrate frame a formal charge. But the charge must contain sufficient particulars as to time, place, person and circumstances so that the accused know the matter which he is charged. It is very important to note that formal trial starts with the framing of charge.
- c) **Plea and Conviction:** After framing the charge first the accused will be asked whether he relates with the committed offence which he is charged. If the accused acknowledges his fault, the Magistrate may sentence him accordingly his fault.
- d) **Hearing or Taking Evidence:** If the accused does not acknowledge his fault or the Magistrate does not give him punishment, the Magistrate proceeds to hear the case on basis of the evidence. At this stage, according to the law of evidence and CrPC the accused and all witnesses will be examined and cross-examined.
- e) **Acquittal:** After hearing and examining all the evidence if the Magistrate thinks that the accused is not guilty, he shall record an order of acquittal.
- f) **Sentence and Transfer for Sentence:** If the Magistrate finds out the accused guilty, he shall give the punishment. But if he thinks that the accused should give capital punishment that is out of his jurisdiction, in this case he may transfer his proceedings to the First Class Magistrate (section 349).

Trial stage in Sessions Court

Trial in Sessions court is more formal and lengthy than the court of Magistrate because in Sessions court there are formal opening, argument and closing of every case.

- a) **Opening of the Prosecution Case:** When the accused appears before the court the prosecution opens the case by describing the charge brought against the accused and submit the evidence by what he will prove the guilty of the accused (section 265B).
- b) **Pre-trial Hearing or Discharge before framing of Charge:** After opening of the case, the Sessions Judge give the chance to the both parties for argument in favour of framing charge or discharge. At this stage there is no chance for the examination of witnesses. After hearing and considering all the things if the Judge think that there is no sufficient evidence against the accused, he may discharge the accused and record the reason for doing that. Moreover, defense lawyer may raise the point of 'no case to answer' that is mean the prosecution is unable to raise a prima facie case in favour of their allegation against the accused. In based on 'no case to answer' the Judge discharge the accused before framing of charges.
- c) **Framing of Charge:** On the contrary, if the Judge thinks that the evidences are considerable and support the allegation against the accused, in this case the Judge frames a formal charge. It is very important to note that formal trial starts with the framing of charge.
- d) **Plea and Conviction:** After framing the charge first the accused will be asked whether he relates with the committed offence which he is charged. If the accused acknowledges his fault, the Magistrate may sentence him accordingly his fault.
- e) **Prosecution Evidence: Examination-in-Chief and Cross Examination:** If the accused does not acknowledge his guilty or the Judge does not accept his plea, the court shall fix a date for the examination of witnesses. At first the Prosecutor will examine all prosecution witnesses and then cross examination will be held by the defense lawyer and there is also a scope for re-examination.
- f) **Acquittal on the basis of Prosecution Evidence:** After considering all the evidence of the prosecution if the court thinks that the evidence is not sufficient to prove the accused offence, in this case the court shall record an order of acquittal, (section 265H)

- g) **Defense Evidence: Examination in Chief and Cross:** If the accused does not get acquittal, the defense lawyer will examine all his witnesses in favour of accused. After defense examination, the witnesses will be cross-examined by the Public Prosecutor and re-examination, if any, will follow immediately (section 265I).
- h) **Summing Up or Closing of the Prosecution and Defense Case:** After hearing the both parties evidence, the prosecutor will first sum up his prosecution and highlight the strong point against the accused and weak points of the defense. The prosecution does this because he bears the burden of proving all reasonable doubt that the offence was committed by the accused. On the other hand, after finishing sum up of the prosecution, the defense starts sum up of his witnesses and highlights his strong points. Besides, the defense lawyer also points out the weakness of the prosecution that would help the defense to convince the Judge that the accused is not responsible for the committed offence. Through these strong points of the defense and weakness of the prosecution, the defense would be able to prove that the prosecution is unable to prove their allegation against the accused.
- Judgment of Acquittal or Conviction:** After hearing arguments and summing up the Judge does not deliver the judgment rather than fix a date for judgment. On the fixed date the Judge declare the judgment in front of the accused and in the open court and the sentence may be acquittal, imprisonment or death.

Pre Proceeding stages

The Stages of a Criminal Case: Pre-Proceeding Stage

There are four steps in pre-proceeding stage:

1. First step: Initiation of a criminal case
2. Second step: Reporting to the Magistrate
3. Third step: Investigation
4. Fourth step: Final report/ Charge sheet

1. First step: Initiation of a criminal case

A criminal case can be initiated in one of the two ways:

- I. Through filing a First Information Report (FIR) in case of cognizable (where arrest without warrant is permitted) offence. See the sample FIR below.
 - II. Complaint to Magistrate in case of cognizable and non-cognizable (where arrest without warrant is not permitted) offence.
- Schedule II of CRPC (Code of Criminal Procedure) details the difference between cognizable and non-cognizable offence.

প্রাথমিক তথ্য বিবরণী

(নিয়ন্ত্রণ নং ১৪৩)

খাদ্য পেশকৃত টেক্সনালী বিধানে কোনো ১৪৩ নং খাদ্য আইন অধীন সংশ্লিষ্ট প্রাথমিক তথ্য

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I. Through filing a First Information Report (FIR) in case of cognizable offence

If an officer-in-charge receives information about any cognizable offence from any of the below four sources then he must record the same and this written record will be treated as FIR and a FIR number or PS (police station) case number will be given. The sources are:

- a) From an individual informant [section 154 of Code of Criminal Procedure (CRPC)]
- b) From any other source such as phone call or by the police themselves or hearsay (section 157 of CRPC)
- c) From a magistrate who sends an offence already taken in cognizance (cognizable or non-cognizable) to the police station for investigation and report

[section 155(3) and 156(3) and Regulation 245 of Bengal Police Regulation (PRB) 1943]

- d) From a magistrate who sends a complaint upon acceptance to a police station for inquiry (section 200 & 202 of CRPC)

II. Complaint to Magistrate in case of cognizable and non-cognizable offence

If a magistrate receives information about an offence from any of the below two sources then, upon examining the complainant on oath, he can either:

- a) take cognizance [in this case the complaint is registered as CR (complaint registered) case]
- or
- b) dismiss
- or
- c) order inquiry or investigation of the matter [in this case complaint is entered as a petition simply known as CRP (Complaint Registered Petition)]

The sources for the magistrate to receive information in this case are:

- a) From a police officer who forwards an informant to the magistrate in a non-

cognizable offence after making a general diary (GD) (section 155 and 200 of CRPC)

- b) From an individual who complains to the magistrate about the commission of a non-cognizable offence (section 200 of CRPC)

2. Second step: Reporting to the Magistrate

In case of FIR: The original copy of the FIR has to be sent to the Magistrate through a police officer within 24 hours (section 157 of CRPC and regulation 246 of PRB 1943 (Volume-1). Upon receiving the FIR the case will be registered as a GR case.

In case of CR case: After a case is registered as CR case then no further reporting to the magistrate as the case has been taken in

In case of CRP case: After a case is registered as CRP case, then a report has to be given to the magistrate upon inquiry or investigation (see the third stage below). The Magistrate then can take the offence in cognizance if he sees reason for proceeding and the CRP case then turns to CR case.

3. Third Step: Investigation

Please note that, in case of a CR case there is no third stage (i.e. investigation). Only in case of FIR or CRP case there is investigation by the Police. However, this has to be understood by way of cognizable and non-cognizable offence.

In case of cognizable offence: The police can investigate without the order of a Magistrate (section 156 CRPC)

In case of non-cognizable offence: Order of a Magistrate is required (section 155 CRPC)

Please note the followings:

- a) Investigation under CRPC: It has to be conducted by an IO (investigation officer) or anyone other than a Magistrate who has been authorized by a Magistrate for this purpose (section 173 CRPC).
- b) Investigation under Special Powers Act (SPA) 1974: Only an officer not below the rank of sub-inspector (SI) can investigate (section 27 of SPA). He will report to the special tribunal which is the only body competent for this purpose.
- c) Maintaining case diary during investigation is mandatory for the investigating officer.
- d) Any person who is arrested during investigation has to be produced before a Magistrate if investigation cannot be completed within 24 hours of arrest. This is known as 'forwarding'. In this case police may seek remand for the arrested person for more interrogation.

4. Fourth Step: Final Report/ Charge Sheet

For understanding this stage, please note the following:

- a) Final Report: Upon investigation if no case of the offence is found then the police gives final report. It essentially releases an accused from custody or discharge him on bail as no case of the offence allegedly committed has been found against him (section 173 CRPC, Regulations 275-277 of PRB). Please note the following:

- The magistrate can accept or reject the report.
- If he rejects the report he may order further investigation by the police (no new PS number is given). He can also order inquiry and examine the complainant and take the offence in cognizance.
- If he accepts the report then the informant being aggrieved can file a naraji petition. Here the Magistrate upon examining the petitioner/complainant can issue process upon the accused (i.e. proceeding of a case will start then) or direct inquiry by any other Magistrate [Syed AzharulKabir v Syed EhsanKabir, 4 MLR (AD) 343]
- b) Charge Sheet: Upon investigation if any case of the offence is found then the police gives charge sheet by mentioning the name of those who have been formally charged for the offence. It essentially recommends for prosecuting the offender (Regulations 272-274 of PRB).
- c) The final report or charge sheet has to be forwarded to the Magistrate empowered to take cognizance of the offence (section 173 of CRPC).